

SOLVED PRACTICE WORKBOOK

President and Vice-President - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

President and Vice-President - Solved Practice Workbook

BASIC MCQS / REMEDIATION PRACTICE

32 original MCQs

Answer rotation: ABCD repeated eight times. Each question includes four option-specific explanations and one question-specific Examiner trap.

MCQ 1. Electoral college

Who participates in electing the President?

A. Elected MPs plus elected State, Delhi and Puducherry MLAs B. Elected MPs and all State legislators C. All MPs and all MLAs D. Only elected MPs

Answer: A.

Option explanations:

- **A:** Correct: Article 54 uses elected MPs and elected MLAs of States, Delhi and Puducherry.
- **B:** Incorrect: Legislative Councillors and nominated State legislators are excluded.
- **C:** Incorrect: nominated MPs and nominated MLAs do not enter this college.
- **D:** Incorrect: the federal component requires specified elected MLAs.

Examiner trap 1: The closest distractor fails because legislative Councillors and nominated State legislators are excluded.

MCQ 2. Vice-Presidential college

Which group elects the Vice-President?

A. Elected MPs only B. All members of both Houses of Parliament C. Elected MPs plus MLAs D. Rajya Sabha alone

Answer: B.

Option explanations:

- **A:** Incorrect: Article 66 also includes nominated MPs.
- **B:** Correct: every elected and nominated member of both Houses participates.
- **C:** Incorrect: no State or Union Territory legislator votes.
- **D:** Incorrect: Lok Sabha members participate equally with Rajya Sabha members.

Examiner trap 2: The closest distractor fails because no State or Union Territory legislator votes.

MCQ 3. MLA vote value

The value of a presidential elector-MLA's vote principally depends on:

A. Current population only B. Area and population C. 1971 population relative to elected Assembly seats D. Assembly strength only

Answer: C.

Option explanations:

- **A:** Incorrect: the constitutional freeze still uses the 1971 census basis.
- **B:** Incorrect: geographical area is not part of Article 55's formula.
- **C:** Correct: population is divided by elected Assembly strength and then by 1,000, with the prescribed rounding rule.
- **D:** Incorrect: seats matter only as the denominator alongside the frozen population.

Examiner trap 3: The closest distractor fails because seats matter only as the denominator alongside the frozen population.

MCQ 4. MP vote value

Which statement about an elected MP's presidential vote value is correct?

A. Lok Sabha MPs have higher value B. Value varies by the MP's State C. Rajya Sabha MPs have higher value D. Every elected MP has the same value

Answer: D.

Option explanations:

- **A:** Incorrect: Article 55 does not privilege Lok Sabha electors.
- **B:** Incorrect: State-specific weighting applies to MLAs, not MPs.
- **C:** Incorrect: Rajya Sabha membership creates no higher value.
- **D:** Correct: aggregate MLA vote value is divided among all elected MPs of both Houses.

Examiner trap 4: The closest distractor fails because article 55 does not privilege Lok Sabha electors.

MCQ 5. President qualification

A presidential candidate must be qualified for election to:

A. Lok Sabha B. Either House C. A State Assembly only D. Rajya Sabha

Answer: A.

Option explanations:

- **A:** Correct: Article 58 uses Lok Sabha qualification.
- **B:** Incorrect: the Constitution specifies Lok Sabha, not either House.
- **C:** Incorrect: State Assembly qualification is not the constitutional test.
- **D:** Incorrect: Rajya Sabha qualification applies to the Vice-President.

Examiner trap 5: The closest distractor fails because the Constitution specifies Lok Sabha, not either House.

MCQ 6. President oath

The President's oath is ordinarily administered by the:

A. Prime Minister B. Chief Justice of India C. Vice-President D. Lok Sabha Speaker

Answer: B.

Option explanations:

- **A:** Incorrect: the Prime Minister does not administer the Article 60 oath.
- **B:** Correct: the Chief Justice of India administers it; the senior-most available Supreme Court judge substitutes.
- **C:** Incorrect: the Vice-President receives a resignation but does not ordinarily administer the oath.
- **D:** Incorrect: the Speaker has no Article 60 role.

Examiner trap 6: The closest distractor fails because the Vice-President receives a resignation but does not ordinarily administer the oath.

MCQ 7. Re-election

The Constitution permits a President to be re-elected:

A. Never B. Once only C. Any number of times D. Twice only

Answer: C.

Option explanations:

- **A:** Incorrect: Article 57 expressly permits re-election.
- **B:** Incorrect: no one-re-election ceiling exists.
- **C:** Correct: the Constitution sets no numerical term limit.
- **D:** Incorrect: India's Constitution does not copy the United States two-term cap.

Examiner trap 7: The closest distractor fails because India's Constitution does not copy the United States two-term cap.

MCQ 8. Casual presidential vacancy

A presidential election after a casual vacancy must be held within:

A. Three months B. One year C. One month D. Six months

Answer: D.

Option explanations:

- **A:** Incorrect: Article 62 does not prescribe three months.
- **B:** Incorrect: one year would breach the constitutional deadline.
- **C:** Incorrect: one month is not the textual rule.
- **D:** Correct: Article 62 requires election within six months; the winner receives a fresh five-year term.

Examiner trap 8: The closest distractor fails because article 62 does not prescribe three months.

MCQ 9. Impeachment initiator

A charge for presidential impeachment may be initiated by:

A. Either House of Parliament B. Rajya Sabha only C. Lok Sabha only D. The electoral college

Answer: A.

Option explanations:

- **A:** Correct: Article 61 gives either House initiation power.
- **B:** Incorrect: Rajya Sabha has exclusive initiation only for Vice-Presidential removal.
- **C:** Incorrect: Lok Sabha is not the sole initiating House.
- **D:** Incorrect: the presidential electoral college has no removal role.

Examiner trap 9: The closest distractor fails because rajya Sabha has exclusive initiation only for Vice-Presidential removal.

MCQ 10. Impeachment majority

Each decisive impeachment resolution requires:

A. Simple majority B. Two-thirds of total membership C. Special majority plus State ratification D. Majority of all then members

Answer: B.

Option explanations:

- **A:** Incorrect: simple majority is far below Article 61's safeguard.
- **B:** Correct: both decisive stages require at least two-thirds of the total membership of the House.
- **C:** Incorrect: State ratification belongs to specified constitutional amendments, not impeachment.
- **D:** Incorrect: an effective majority is used for Vice-Presidential removal in Rajya Sabha.

Examiner trap 10: The closest distractor fails because state ratification belongs to specified constitutional amendments, not impeachment.

MCQ 11. Nominated MPs

Which statement about nominated MPs is correct?

A. They neither elect nor impeach B. They elect but cannot impeach C. They may impeach but do not elect the President D. They both elect and impeach

Answer: C.

Option explanations:

- **A:** Incorrect: they may participate in impeachment.
- **B:** Incorrect: Article 54 excludes them from presidential election.
- **C:** Correct: impeachment involves members of Parliament, while the electoral college includes only elected MPs.
- **D:** Incorrect: their presidential-election exclusion remains.

Examiner trap 11: The closest distractor fails because their presidential-election exclusion remains.

MCQ 12. Ministerial advice

After the President returns ministerial advice once and the Council reiterates it:

A. The Supreme Court decides B. Parliament votes C. The President may repeatedly return it D. The President must act on it

Answer: D.

Option explanations:

- **A:** Incorrect: Article 74 does not transfer the decision to the Court.
- **B:** Incorrect: reconsidered advice is not put to a parliamentary vote.
- **C:** Incorrect: the Article 74(1) proviso permits only one reconsideration.
- **D:** Correct: the 44th Amendment proviso makes reiterated advice binding.

Examiner trap 12: The closest distractor fails because article 74 does not transfer the decision to the Court.

MCQ 13. Hung Lok Sabha

The sound constitutional test for appointing a Prime Minister in a hung Lok Sabha is:

A. Likely ability to secure House confidence B. Rajya Sabha strength C. Largest party in every circumstance D. Personal ideological closeness

Answer: A.

Option explanations:

- **A:** Correct: the appointment must facilitate a ministry capable of commanding Lok Sabha confidence, tested promptly on the floor.
- **B:** Incorrect: collective responsibility is to Lok Sabha, not Rajya Sabha.
- **C:** Incorrect: largest-party status is relevant evidence, not an inflexible constitutional command.
- **D:** Incorrect: personal preference would convert bounded judgment into partisan discretion.

Examiner trap 13: The closest distractor fails because collective responsibility is to Lok Sabha, not Rajya Sabha.

MCQ 14. Returned ordinary Bill

If Parliament re-passes a returned ordinary Bill:

A. A two-thirds override is needed B. The President must assent C. The President may return it again D. A referendum follows

Answer: B.

Option explanations:

- **A:** Incorrect: Article 111 requires the ordinary majority applicable to the Bill, not a United States-style override.
- **B:** Correct: after re-passage, with or without amendments, assent cannot be withheld.
- **C:** Incorrect: the suspensive veto may be used only once.
- **D:** Incorrect: the Constitution provides no referendum at this stage.

Examiner trap 14: The closest distractor fails because the suspensive veto may be used only once.

MCQ 15. Money Bill

Under Article 111, the President may not:

A. Withhold assent to a Money Bill B. Act on ministerial advice C. Return a Money Bill for reconsideration D. Assent to a Money Bill

Answer: C.

Option explanations:

- **A:** Incorrect: the text does not expressly eliminate withholding, although prior recommendation and advice constrain practice.
- **B:** Incorrect: Article 74 continues to govern.
- **C:** Correct: the return proviso excludes Money Bills.
- **D:** Incorrect: assent is the normal route.

Examiner trap 15: The closest distractor fails because assent is the normal route.

MCQ 16. Constitution Amendment Bill

After valid passage of a Constitution Amendment Bill, presidential assent is:

A. Optional B. Returnable once C. Subject to a fresh vote by States D. Obligatory

Answer: D.

Option explanations:

- **A:** Incorrect: the 24th Amendment removed discretion to withhold assent.
- **B:** Incorrect: Article 111's return mechanism does not apply.
- **C:** Incorrect: State ratification, where required, precedes presentation and is not a presidential option.
- **D:** Correct: Article 368 requires the President to give assent.

Examiner trap 16: The closest distractor fails because the 24th Amendment removed discretion to withhold assent.

MCQ 17. Pocket veto

The textual basis of the so-called pocket veto is:

A. Absence of a fixed Article 111 deadline B. A six-month clause C. Prior Supreme Court permission D. Rajya Sabha approval

Answer: A.

Option explanations:

- **A:** Correct: the expression is conventional; it arises from silence about decision time.
- **B:** Incorrect: Article 111 contains no six-month rule.
- **C:** Incorrect: judicial permission is not a precondition.
- **D:** Incorrect: Rajya Sabha does not separately approve presidential delay.

Examiner trap 17: The closest distractor fails because article 111 contains no six-month rule.

MCQ 18. Ordinance timing

Article 123 is available when:

A. Both Houses must be dissolved B. Both Houses are not simultaneously in session C. Lok Sabha alone must be dissolved D. A National Emergency exists

Answer: B.

Option explanations:

- **A:** Incorrect: dissolution of both Houses is impossible because Rajya Sabha is continuing.
- **B:** Correct: an ordinance may issue whenever both Houses are not in session together and immediate action is necessary.
- **C:** Incorrect: dissolution is unnecessary; adjournment or prorogation may also create the condition.
- **D:** Incorrect: National Emergency is not a prerequisite.

Examiner trap 18: The closest distractor fails because dissolution is unnecessary; adjournment or prorogation may also create the condition.

MCQ 19. Ordinance end

Unless earlier disapproved or withdrawn, an ordinance ceases:

A. Immediately on reassembly B. After one year C. Six weeks after the later reassembly date D. After six months

Answer: C.

Option explanations:

- **A:** Incorrect: the Constitution gives a six-week scrutiny window.
- **B:** Incorrect: an ordinance cannot ordinarily survive for a year without legislation.
- **C:** Correct: if Houses reassemble on different dates, six weeks runs from the later date.
- **D:** Incorrect: six months is the maximum interval between sessions, not the post-reassembly life.

Examiner trap 19: The closest distractor fails because six months is the maximum interval between sessions, not the post-reassembly life.

MCQ 20. Re-promulgation

D. C. Wadhwa (1986) characterised routine re-promulgation as:

A. Pocket veto B. Collective responsibility C. Basic Structure D. Fraud on the Constitution

Answer: D.

Option explanations:

- **A:** Incorrect: pocket veto concerns assent delay.
- **B:** Incorrect: collective responsibility concerns the Council of Ministers.
- **C:** Incorrect: the case did not classify re-promulgation as the Basic Structure.
- **D:** Correct: repeated executive renewal without legislative consideration was condemned as constitutional fraud.

Examiner trap 20: The closest distractor fails because pocket veto concerns assent delay.

MCQ 21. Article 72 field

Which category falls uniquely within presidential, rather than gubernatorial, clemency?

A. Court-martial sentence B. Every State-law offence C. Legislative privilege D. Civil decree

Answer: A.

Option explanations:

- **A:** Correct: Article 72 expressly covers court-martial cases.
- **B:** Incorrect: State-law offences ordinarily fall within Article 161.
- **C:** Incorrect: legislative privilege is not a clemency sentence category.
- **D:** Incorrect: clemency concerns criminal punishment, not ordinary civil decrees.

Examiner trap 21: The closest distractor fails because state-law offences ordinarily fall within Article 161.

MCQ 22. Governor and death sentence

A Governor may:

A. Pardon a death sentence B. Suspend, remit or commute a death sentence but not pardon it C. Do nothing concerning a death sentence D. Review a court-martial sentence

Answer: B.

Option explanations:

- **A:** Incorrect: Article 72 reserves the power to pardon a death sentence to the President.
- **B:** Correct: Article 161 permits lesser forms such as suspension, remission and commutation in the State field.
- **C:** Incorrect: the Governor retains these lesser powers.
- **D:** Incorrect: court-martial clemency is outside Article 161.

Examiner trap 22: The closest distractor fails because the Governor retains these lesser powers.

MCQ 23. Clemency review

Epuru Sudhakar supports judicial review of clemency for:

A. Any disagreement on mercy B. No grounds whatsoever C. Mala fides or non-application of mind D. Mere reappreciation of evidence

Answer: C.

Option explanations:

- **A:** Incorrect: courts do not substitute their view of mercy.
- **B:** Incorrect: constitutional power is not wholly immune.
- **C:** Correct: bad faith, arbitrariness, irrelevant material and non-application of mind are recognised grounds.
- **D:** Incorrect: review is not a regular criminal appeal on evidence.

Examiner trap 23: The closest distractor fails because review is not a regular criminal appeal on evidence.

MCQ 24. Vice-President removal

The resolution to remove the Vice-President must originate in:

A. Either House B. A joint sitting C. Lok Sabha D. Rajya Sabha

Answer: D.

Option explanations:

- **A:** Incorrect: Article 67(b) gives Rajya Sabha exclusive initiation.
- **B:** Incorrect: no joint sitting exists for removal.
- **C:** Incorrect: Lok Sabha only agrees to the Rajya Sabha resolution.
- **D:** Correct: Rajya Sabha initiates with an effective majority after fourteen days' notice.

Examiner trap 24: The closest distractor fails because article 67(b) gives Rajya Sabha exclusive initiation.

MCQ 25. Vice-President vacancy

A casual vacancy in the Vice-Presidency must be filled:

A. As soon as possible B. Only at Parliament's next session C. Within one year D. Within six months

Answer: A.

Option explanations:

- **A:** Correct: Article 68 uses 'as soon as possible' and gives the successor a fresh term.
- **B:** Incorrect: the election is not tied to the next parliamentary session.
- **C:** Incorrect: no one-year deadline exists.
- **D:** Incorrect: the six-month deadline belongs to a presidential casual vacancy.

Examiner trap 25: The closest distractor fails because the election is not tied to the next parliamentary session.

MCQ 26. Chairman's vote

The Rajya Sabha Chairman ordinarily has:

A. A first vote only B. No first vote but a casting vote on equality C. Two votes D. No vote in any circumstance

Answer: B.

Option explanations:

- **A:** Incorrect: as a non-member presiding officer, the Chairman lacks an initial vote.
- **B:** Correct: Article 100 gives a casting vote when votes are equally divided.
- **C:** Incorrect: the office never has both an initial and casting vote.
- **D:** Incorrect: a casting vote normally exists, except during the Chair's own removal consideration.

Examiner trap 26: The closest distractor fails because the office never has both an initial and casting vote.

MCQ 27. Acting President

While the Vice-President acts as President:

- A. The Lok Sabha Speaker chairs Rajya Sabha B. The Vice-President continues chairing Rajya Sabha C. The Deputy Chairman performs the Chairman's duties D. Rajya Sabha is suspended

Answer: C.

Option explanations:

- **A:** Incorrect: the Lok Sabha Speaker has no Rajya Sabha presiding role.
- **B:** Incorrect: Article 64 prevents simultaneous discharge of both functions.
- **C:** Correct: the Deputy Chairman performs the Chair's duties during the acting period.
- **D:** Incorrect: the continuing chamber remains operational.

Examiner trap 27: The closest distractor fails because the continuing chamber remains operational.

MCQ 28. Article 143

A Supreme Court opinion under Article 143 is:

- A. A constitutional amendment B. Always a binding adjudicated decree C. An ordinance D. Advisory rather than binding like an inter partes decree

Answer: D.

Option explanations:

- **A:** Incorrect: advice does not alter constitutional text.
- **B:** Incorrect: its authoritative weight is distinct from a binding judgment between litigating parties.
- **C:** Incorrect: ordinance power is Article 123.
- **D:** Correct: the President may seek advisory opinion on qualifying questions of law or fact.

Examiner trap 28: The closest distractor fails because advice does not alter constitutional text.

MCQ 29. College comparison

Which President-Vice-President electoral-college pairing is correct?

- A. President: elected MPs plus specified elected MLAs; Vice-President: all MPs B. Both offices: all MPs plus all MLAs
C. Both offices: elected MPs only D. President: all MPs; Vice-President: elected MPs plus MLAs

Answer: A.

Option explanations:

- **A:** Correct: Article 54 is elected-and-federal; Article 66 is Parliament-only and includes nominees.
- **B:** Incorrect: no MLA votes for Vice-President and nominees do not vote for President.
- **C:** Incorrect: the President's college includes specified elected MLAs.
- **D:** Incorrect: the two colleges have been reversed.

Examiner trap 29: The closest distractor fails because no MLA votes for Vice-President and nominees do not vote for President.

MCQ 30. Removal arithmetic

Vice-Presidential removal in Rajya Sabha requires:

A. Two-thirds present and voting B. A majority of all the then members C. Two-thirds of total membership D. A simple majority of those present and voting

Answer: B.

Option explanations:

- **A:** Incorrect: that fraction is not Article 67(b)'s formula.
- **B:** Correct: 'all the then members' means an effective majority of the current membership.
- **C:** Incorrect: this is the presidential impeachment threshold.
- **D:** Incorrect: vacancies cannot be ignored as under an ordinary simple majority.

Examiner trap 30: The closest distractor fails because this is the presidential impeachment threshold.

MCQ 31. Vacancy deadline comparison

The express six-month deadline for filling a casual vacancy applies to:

A. Both offices B. Vice-President only C. President only D. Neither office

Answer: C.

Option explanations:

- **A:** Incorrect: Article 68 uses no six-month outer limit.
- **B:** Incorrect: the Vice-President must be elected as soon as possible.
- **C:** Correct: Article 62(2) fixes six months for the President.
- **D:** Incorrect: the President has an express deadline.

Examiner trap 31: The closest distractor fails because the President has an express deadline.

MCQ 32. Article 111 finality

Which Bill can neither be returned by the President nor subjected to a withholding veto after valid passage?

A. Ordinary Bill B. Governor-reserved State Bill C. Money Bill D. Constitution Amendment Bill

Answer: D.

Option explanations:

- **A:** Incorrect: an ordinary Bill may be returned once and assent may initially be withheld.
- **B:** Incorrect: Article 201 permits withholding and return of a non-Money State Bill through the Governor.
- **C:** Incorrect: a Money Bill cannot be returned, but the text still presents assent or withholding.
- **D:** Correct: Article 368, after the 24th Amendment, makes assent obligatory.

Examiner trap 32: The closest distractor fails because an ordinary Bill may be returned once and assent may initially be withheld.

PYQS AND ANSWER PRACTICE

Verified PYQ routes

Objective PYQ key discipline

For objective questions, a correct-option letter is printed only where a final official or locally held official UPSC key has been verified. Otherwise the answer is withheld rather than inferred.

PYQ 1 - 2018 Prelims GS-I Q32

Question: With reference to the election of the President of India, consider the following statements:

1. The value of the vote of each MLA varies from State to State.
2. The value of the vote of MPs of the Lok Sabha is more than the value of the vote of MPs of the Rajya Sabha.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Answer withheld pending official UPSC key.

PYQ 2 - 2022 GS-II Q4

Question: Discuss the role of the Vice-President of India as the Chairman of the Rajya Sabha. (150 words, 10 marks)

Model answer: Article 64 makes the Vice-President ex-officio Chairman of Rajya Sabha; this presiding role, rather than the rare acting-presidential contingency, is the office's regular work. The Chairman maintains order, interprets rules, decides points of order and admissibility, and regulates proceedings under House rules. Though not a Rajya Sabha member, Article 100 grants a casting vote when votes are equally divided. Under the Tenth Schedule, the Chairman decides disqualification questions concerning Rajya Sabha members, subject to judicial review after *Kihoto Hollohan*. Unlike the Lok Sabha Speaker, the Chairman does not certify Money Bills. Article 92 also bars the Vice-President from presiding or voting while a removal resolution is considered, though participation in debate is allowed. Since Rajya Sabha represents States and revises legislation, neutral, reasoned rule enforcement is the foundation of the Chair's legitimacy.

PYQ 3 - 2022 GS-II Q14

Question: Critically examine the procedures through which the Presidents of India and France are elected. (250 words, 15 marks)

Model answer: The procedures reflect different executive designs. India's President is a nominal federal Head of State, whereas France's President is a powerful actor in a semi-presidential system. India uses an indirect college of elected MPs and elected State, Delhi and Puducherry MLAs. MLA votes are weighted using the frozen population-to-seat ratio; aggregate State and parliamentary vote values are balanced. PR-STV and a secret ranked ballot produce a majority-supported winner. The method embeds federal representation and avoids a direct rival mandate to the Cabinet, but is complex and democratically remote. France uses direct universal suffrage. An absolute majority wins in the first round; otherwise the top two contest a run-off. This provides a visible nationwide mandate suitable for an active President, but competing presidential and legislative mandates can produce cohabitation. Thus, India privileges federal mediation and parliamentary responsibility; France privileges direct authorization and executive leadership. Procedure must be judged against the office being filled.

PYQ 4 - 2023 Prelims GS-I Q36

Question: Consider the following statements:

1. If the election of the President is declared void by the Supreme Court, all acts done before the decision become invalid.
2. Presidential election can be postponed because some Legislative Assemblies are dissolved and elections are pending.
3. The Constitution prescribes a time limit for presidential assent to a Bill.

How many statements are correct?

A. Only one B. Only two C. All three D. None

Answer withheld pending official UPSC key.

PYQ 5 - 2023 Prelims GS-I Q80

Question: Consider the following statements in respect of election to the President of India:

1. Nominated members of Parliament or State Assemblies are included.
2. Higher the number of elective Assembly seats, higher is each MLA's vote value.
3. Each Madhya Pradesh MLA has a higher value than each Kerala MLA.
4. Puducherry MLA value is higher than Arunachal Pradesh because its population-to-elective-seat ratio is higher.

How many statements are correct?

A. Only one B. Only two C. Only three D. All four

Answer withheld pending official UPSC key.

PYQ 6 - 2025 Prelims GS-I Q51

Question: With reference to Indian polity, consider the following statements:

1. An Ordinance can amend any Central Act.
2. An Ordinance can abridge a Fundamental Right.
3. An Ordinance can come into effect from a back date.

Which are correct?

A. 1 and 2 only B. 2 and 3 only C. 1 and 3 only D. 1, 2 and 3

Official Set-A answer: C.

Explanation: An ordinance has Act-like force and may amend Central law or operate retrospectively within constitutional limits. It is "law" under Article 13 and cannot abridge Fundamental Rights.

PYQ 7 - 2025 Prelims GS-I Q86

Question: Consider the following statements regarding the pardoning power of the President:

1. Its exercise can be subjected to limited judicial review.
2. The President can exercise it without advice of the Central Government.

Which is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Official Set-A answer: A.

Explanation: *Epuru Sudhakar* permits limited review for defects such as mala fides and non-application of mind. *Maru Ram* confirms that Article 72 is exercised on binding ministerial advice.

PYQ 8 - 2025 GS-II Q3

Question: Compare and contrast the President's power to pardon in India and in the USA. Are there any limits to it in both countries? What are "preemptive pardons"? (150 words, 10 marks)

Model answer: Article 72 gives India's President pardon, reprieve, respite, remission and commutation for Union-field offences, court-martial cases and every death sentence. The power is exercised on binding Council of Ministers advice (*Maru Ram*), may examine merits afresh (*Kehar Singh*) and is reviewable on narrow grounds such as mala fides or non-application of mind (*Epuru Sudhakar*). The United States President's Article II power is personally exercised and covers federal offences, but not State offences or impeachment. A preemptive pardon covers completed conduct before charge, trial or conviction; it cannot authorize future crime. Both powers are broad safety valves, but India's is advice-bound and judicially reviewable, while the US model concentrates political responsibility in the elected President.

SIX ORIGINAL MAINS QUESTIONS WITH MODEL ANSWERS

Original Q1 - 10 marks, 150 words

Question: "The Indian President is a constitutional sentinel, not an alternative executive." Examine.

Model answer: Articles 53 and 74 create a deliberate duality: Union executive power is formally vested in the President, but exercised on binding ministerial advice. The 42nd Amendment altered Article 74(1) to make the binding character explicit; the 44th inserted a proviso permitting one reconsideration, after which reiterated advice controls. Therefore, a President cannot pursue an independent policy in ordinary majority government. Yet the office is not empty. Article 78 supports consultation and information; reconsideration can force reflection; and a hung Lok Sabha requires bounded judgment in appointing the person most likely to secure House confidence. K. R. Narayanan's return of President's-Rule advice illustrates warning without final defiance. The President is therefore a sentinel who protects constitutional process through questions, reasons and limited delay, but not an alternative executive because democratic responsibility remains with the Council of Ministers.

Original Q2 - 10 marks, 150 words

Question: Compare the constitutional vacancy arrangements for the President and Vice-President.

Model answer: The Constitution prevents vacancy from becoming an institutional vacuum, but uses different rules for the two offices. Under Articles 62 and 65, a presidential casual vacancy must be filled within six months; meanwhile the Vice-President acts as President. If both offices are unavailable, Article 70 read with the President (Discharge of Functions) Act, 1969 enables the Chief Justice of India, or the senior-most available Supreme Court judge, to discharge functions. The elected President receives a fresh five-year term. Under Article 68, a Vice-Presidential casual vacancy is filled "as soon as possible"; there is no six-month textual deadline, and the successor also receives a fresh term. During the vacancy there is no acting Vice-President because the office's regular Rajya Sabha duties can be performed by the Deputy Chairman. The difference reflects function: uninterrupted Head-of-State continuity needs a substitute, while parliamentary presiding continuity already has an internal chamber mechanism.

Original Q3 - 15 marks, 250 words

Question: Explain how the presidential election reconciles democratic representation with federal balance.

Model answer: Articles 54-55 reject both hereditary headship and direct presidential rivalry. The President is indirectly elected by elected MPs and elected MLAs of States, Delhi and Puducherry. Because every elector is elected, the system retains democratic legitimacy; excluding nominated members and MLAs keeps the mandate tied to direct election. Federal balance enters through weighted MLA votes based on the frozen 1971 population-to-elected-seat ratio. This gives States different aggregate weight while seeking relative uniformity within each State. The total value of MLA votes is then divided among elected MPs of both Houses, producing parity between the States collectively and Parliament collectively. PR-STV and a secret ranked ballot require a candidate to cross a majority quota through preference transfers rather than win by a fragmented plurality. The design is complex and the 1971 basis no longer mirrors current population distribution. Yet immediate adoption of current population could penalise States that achieved population stabilisation, while direct election could create a competing popular mandate against the parliamentary Cabinet. The system is therefore a constitutional compromise: democratically derived, federally weighted and nationally mediated.

Original Q4 - 15 marks, 250 words

Question: Ordinance power is necessary for urgency but dangerous as a substitute for Parliament. Discuss.

Model answer: Article 123 permits an ordinance when both Houses are not simultaneously in session and circumstances require immediate action. It has the force of an Act, may amend Central law and may operate retrospectively within constitutional limits. This is useful where waiting for Parliament would leave a serious legal gap. However, ordinance-making bypasses debate, committee scrutiny and the possibility that one House may reject the executive's proposal. The safeguards therefore matter more than the existence of the power. Every ordinance must be laid before both Houses and ordinarily ceases six weeks after their later reassembly. It remains limited by Parliament's legislative competence, Fundamental Rights and judicial review. *R. C. Cooper* rejected complete immunity of satisfaction; *D. C. Wadhwa* called routine re-promulgation a fraud on the Constitution; and *Krishna Kumar Singh* held that laying is mandatory and repeated re-promulgation subverts legislative supremacy. The correct reform is not abolition, because genuine urgency exists, but prompt parliamentary scrutiny, reasoned necessity and strict resistance to re-promulgation. Article 123 is legitimate as a temporary bridge, unconstitutional in spirit when converted into an alternative legislative channel.

Original Q5 - 20 marks, 250 words

Question: Analyse the President's legislative powers, with special reference to veto and ordinance-making, and assess the accountability safeguards.

Model answer: The President is a constituent part of Parliament under Article 79 and completes important legislative stages without becoming a third deliberative chamber. Articles 85-87 cover summoning, prorogation, dissolution, messages and addresses; Article 108 enables joint sitting; Article 111 controls assent. For an ordinary Bill the President may assent, withhold or return it once, but re-passage compels assent. A Money Bill cannot be returned. A Constitution Amendment Bill must receive assent under Article 368 after the 24th Amendment. Article 201 differs: a reserved non-Money State Bill may be returned through the Governor, but State re-passage does not textually compel assent. Article 111's silence on time creates the pocket-veto possibility, although responsible advice and constitutional expedition constrain its legitimate use. Article 123 supplies temporary Act-like law when both Houses are not simultaneously sitting and urgent action is required. Its safeguards are legislative competence, Fundamental Rights, mandatory laying, six-week expiry, disapproval and judicial review. *D. C. Wadhwa* and *Krishna Kumar Singh* prevent re-promulgation from replacing Parliament. Across both veto and ordinance powers, the central accountability rule is that formal presidential action is advice-bound, legislatively answerable and judicially reviewable for constitutional abuse.

Original Q6 - 20 marks, 250 words

Question: Evaluate the Vice-President's dual position as Rajya Sabha Chairman and potential acting President.

Model answer: The Vice-President's title suggests executive succession, but the office's regular constitutional purpose is parliamentary. Article 64 makes the Vice-President ex-officio Chairman of Rajya Sabha and not a member of that House. Article 100 therefore denies an initial vote but permits a casting vote on equality. The Chairman regulates proceedings, decides points of order and admissibility, and determines Rajya Sabha anti-defection questions under the Tenth Schedule, subject to judicial review after *Kihoto Hollohan*. Article 92 creates a crucial neutrality safeguard: during consideration of the Vice-President's own removal resolution, the office-holder may speak but cannot preside or vote. The Chairman also differs from the Lok Sabha Speaker by lacking Money-Bill certification

authority. The contingency role arises under Article 65 when the presidency is vacant or the President is temporarily unable. During that period the Vice-President does not simultaneously chair Rajya Sabha; the Deputy Chairman performs those duties, and presidential emoluments apply. Acting does not mean succeeding to the unexpired term. The dual design secures both federal-chamber procedure and Head-of-State continuity, but legitimacy depends on visible impartiality in the Chair and strict temporary limits in the acting role.